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The Minhag of Kapparot by Rabbi Chaim Jachter

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The Minhag of Kapparot has a very interesting history. There is no mention of this practice in the Gemara or the Rambam. The Geonim and Rishonim penned mixed reviews of the practice - some opposed it, but many heartily endorsed it. By the time of the early Acharonim both Ashkenazic and Sephardic Jews had accepted the practice. The later Acharonim do not express opposition to the practice but expressed some very serious reservations about its implementation. In this essay we will trace the development of this Minhag and try to understand its significance for Yom Kippur.

Geonim and Rishonim

Rashi to Shabbat 81b (s.v. Hai Parpisa) cites a fascinating practice from the Teshuvot Hageonim. We make small palm leaf baskets and we fill the basket with dirt and fertilizer twenty-two or fifteen days before Rosh Hashana for each boy and girl in

the house. We plant in these baskets either an Egyptian bean or a type of legume... On Erev Rosh Hashana everyone takes his plant and swings it around his head seven times and states 'this is instead of this, this is my replacement, this is my exchange' and then we throw the plant into the river.

The Rosh (Yoma 8:23), the Mordechai (at the beginning of his notes to Masechet Yoma), and the Tur (Orach Chaim 605) record this practice with approval. They, however, mention that the usual practice is to take a chicken and slaughter it. They also note that the ritual is performed on Erev Yom Kippur. The Rosh explains that the Gemara sometimes refers to a chicken as a Gever (see Yoma 20b), which also means man. Thus, a chicken is an appropriate "substitute" for man. He also offers a pragmatic explanation: that chickens are readily available and less expensive than larger animals such as a ram.

The Chayei Adam (144:4) and Mishna Berura (605:2) explain that the idea of Kapparot is modeled after the idea of a Korban, as explained by the Ramban (Vayikra 1:9). The Ramban writes that fundamentally the individual who sinned deserves to have his life taken as punishment for violating Hashem's Law. However, Hashem in His mercy permits us to substitute an animal. When presenting a Korban, one should feel that his blood deserves to be spilled and that his body deserves to be burned, had it not been for Hashem's merciful permission to offer a Korban as a substitute. Thus, offering a Korban constitutes a reenactment of Akeidat Yitzchak. Similarly, the Chayei Adam and Mishna Berura write that during the Kapparot ritual, one should contemplate that one deserves to be slaughtered just as the Kapparot chicken is slaughtered and that the chicken is a substitute. See Kaf Hachaim (605:10) for other explanations for Kapparot.

On the other hand, the Bait Yosef (O.C. 605 s.v. Yeish Mekomot) cites the Rashba (Teshuvot 395) who opposes the practice of Kapparot. The Rashba worked hard to successfully convince the people in his area (thirteenth century Barcelona, Spain) to cease practicing Kapparot. He believes that this practice smacks of "Darchei Emori" (illicit magic). The Rashba does, however, acknowledge that all of the Ashkenazic rabbis of his time practiced Kapparot and that the practice is recorded in the

writings of Rav Hai Gaon. Nevertheless, he sustains his opposition to this practice. The Bait Yosef cites that the Ramban (the Rebbe of the Rashba) also opposed the practice of Kapparot because it resembles “Darchei Emori.”

Shulchan Aruch and Acharonim

Accordingly, during the time of the Rishonim, Ashkenazic Jews practiced the Minhag of Kapparot, and two great Sephardic authorities (Ramban and Rashba) opposed this practice. The Rambam expresses his opposition to this practice by not mentioning it in his Mishna Torah. Thus, it is not surprising that the Shulchan Aruch (O.C. 605) opposes the practice of Kapparot. However, the Rama (ibid.) notes that this practice is recorded as early as the Geonic period and is the accepted practice in all Ashkenazic communities. The Rama regards the practice as a “Minhag Vatikin,” a venerated practice that one must not neglect. The practice recorded in the Rama is to slaughter a chicken for every family member.

The Ben Ish Chai (Parshat Vayelech 2), Kaf Hachaim (605:8), and Rav Ovadia Yosef (Teshuvot Yechaveh Daat 2:71) record that Sephardic Jews have adopted this custom despite the opposition of Rav Yosef Karo, the author of the Shulchan Aruch. An explanation for this change is that the Ari z”l enthusiastically embraced this practice (as noted by the Magen Avraham 605:1) based on his Kabbalistic approach. The Ari z”l has an enormous impact on Sephardic practice in a wide variety of areas.

The Shechita Problem and the Money Alternative

Despite the fact that the Rama wholeheartedly endorses the practice of Kapparot, all of the major nineteenth and early twentieth century codes (Chayei Adam (144:4), Kaf Hachaim (605:11), Mishna Berura (605:2), and Aruch Hashulchan (O.C. 605:3)) all raised the following procedural concern. They note that the masses are particularly enthusiastic about this practice (too enthusiastic, in the opinion of the Aruch Hashulchan) and that there is nearly universal participation in this Minhag. Thus, enormous pressure is placed on the Shohtim (ritual slaughterers) to slaughter at a very fast pace because they must slaughter a chicken for every member of the community on Erev Yom Kippur. This, in turn, triggers concern for the

integrity of the Shechita process. The knife that is used for slaughtering must be meticulously examined to ascertain that there are absolutely no nicks in the knife. The Chayei Adam and Mishna Berura express concern that an overworked and overburdened Shochet may not notice a subtle nick in the knife. Rav Ovadia Yosef reports that when the local rabbis inspect the knives of the Shochtim involved in slaughtering chickens for Kapparot purposes, they have often discovered nicks in the knives. The Aruch Hashulchan expresses concern that there will not be sufficient time to inspect for Teraifot in the animal. These authorities are horrified by the fact that observance of this Minhag leads to violation of Torah level prohibitions!

Thus the Acharonim suggest two solutions to this problem. The Mishna Berura cites the Pri Megadim who rules that Kapparot may be performed throughout the Aseret Yemai Teshuva. Indeed, Rashi records that this ritual is performed on Erev Rosh Hashanah. Accordingly, the Mishna Berura suggests that Kapparot be performed a day or two before Erev Yom Kippur to relieve the stress on the Shochtim. Rav Ovadia Yosef writes that Kapparot may be performed throughout the entire Aseret Yemai Teshuva. The Chayei Adam, Kaf Hachaim, and Mishna Berura all suggest that Kapparot may be performed on money to relieve the pressure on the Shochtim.

The Chayei Adam notes that the Minhag did not originally involve slaughtering a chicken, as we have seen from the aforementioned quote from Rashi commenting on Shabbat 81b. Thus, swinging money around one's head, reciting that the money should be the "substitute," and donating the money to charity is a viable alternative to Kapparot performed with a chicken. This is the reason why many families practice Kapparot using money. In our communities in this country, performing Kapparot with chickens is not very popular for a variety of reasons, and the concerns expressed by the various Acharonim do not appear to be relevant. Thus, many people have "returned" to the practice of performing Kapparot with chickens, instead of "only" using money.

Two Observations

The problem of overburdened Shochtim was a year round problem of enormous proportions in the United States in the first half of the twentieth century. The owners of the kosher slaughterhouses terribly abused the Shochtim. This not only made the lives of the Shochtim miserable (some Shochtim even had to walk to the slaughterhouse late on Shabbat afternoon, so that they could start Shechita immediately after Shabbat finished!), but it also called into question the validity of the Shechita. Only through the courageous battles waged by Rabbanim such as Rav Yosef Dov Soloveitchik and Rav Pinchas Teitz against these abuses did the situation improve. The recently published biographies of Rav Soloveitchik and Rav Teitz recount these battles in detail.

The Aruch Hashulchan bemoans the fact that the “masses are devoted to it (the practice of Kapparot) as they are to the Mitzva of Etrog if not more.” The Aruch Hashulchan writes that he seeks to cool this passion somewhat because it leads to violations of Torah laws. This comment underscores the attitude that we should have towards Minhagim. It is vitally important for one to follow the Minhagim of his community and family. However, it is also important to maintain perspective. One should understand what practices are required by Torah law, which by rabbinical law, and which practices are merely a custom. Failure to do so can lead to negative consequences as we see in the context of Kapparot. When there is a conflict between a Torah law and a custom, the Torah law has priority. Even rabbinic law has priority over a custom in a situation of conflict.

Conclusion

Both Ashkenazic and Sephardic Jews should observe the custom of Kapparot, preferably in the traditional manner outlined by the Rama. One may conjecture that the root of this custom is our desire to offer Korbanot, especially on Yom Kippur. In the painful absence of the Avodat Bait Hamikdash, the Jewish soul pines for an experience that even slightly resembles the experience of offering a Korban in the Bait Hamikdash. We should note that the Spanish Portuguese Jewish community does not practice Kapparot, in accordance with the ruling of the Shulchan Aruch.



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